

5th Legislature



Enactment No. 25

To make a lawful act granting certain authorities to the Executive Department, for the preservation of gravesites and related archeological finds, and for other purposes.

IN THE CHICKASAW TRIBAL LEGISLATURE

July 15, 1988

Mr. Robert STEPHENS introduced the following bill;

A BILL

To establish legal authority and to specify provisions for the recovery of remains and artifacts of Chickasaw burial sites and/or archeological sites, and for the protection of the same.

Be it enacted by the tribal legislature of the Chickasaw Nation assembled, that this Act may be cited as the "Chickasaw Preservation Act of 1988."

SEC. 2. The Legislature finds that--

(1) Remains and artifacts from acknowledged and recognized Chickasaw burial sites and archeological sites or "digs" are now in the possession of others who may not show nor care to show the proper and just respect for such artifacts and remains;

(2) The potential for the discovery of other such sites is great;

(3) The need exists for the tribal government to provide its sovereign protections to such human remains, artifacts and other items as have been or may be discovered.

SEC. 3. For the purpose of this Act--

(1) "Remains" means any human body part which may or may not have been part of a Chickasaw

burial ritual;

(2) "Artifacts" means any object made by human work, including tools, weapons, vessels, jewelry or articles of clothing or adornment.

(3) "Chickasaw Tribal Government" means the recognized governing body of the tribe, possessing plenary power over the people, land and property within the exterior boundaries of the Chickasaw Nation;

(4) "Chickasaw Nation" means the tribe of Indians located within the boundaries set forth in the Constitution of the Chickasaw Nation, adopted August 27, 1983, being duly recognized by the Secretary of the Interior of the United States of America and other agencies of the United States of America and other governments, as a self-governing, sovereign government; sometimes hereinafter referred to as "tribe."

SEC. 4. The basis for authority of this Act is Article VII, Section 4 of the Constitution of the Chickasaw Nation, wherein the Tribal Legislature is granted the power and authority to enact rules and regulations pertaining to the Chickasaw Nation in accordance with the Constitution. The Chickasaw Tribal Legislature, with the adoption of this Act, hereby:

(a) grants specific and general powers and authorities to the Governor of the Chickasaw Nation to recover all remains, artifacts and other items of Chickasaw Indians which have been removed from original sites of burial, ritual or domesticity, utilizing all legal and just means inherent in the sovereign powers of the Chickasaw Nation;

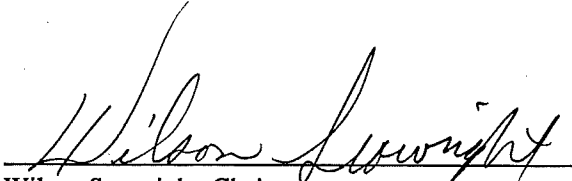
(b) grants powers of enforcement and the administration of this Act to the Governor of the Chickasaw Nation, and empowers him to convey such duties on such committee or commission as he may deem fit and proper to create, subject to the provisions of the Constitution of the Chickasaw Nation;

SEC. 5. The Governor of the Chickasaw Nation shall, once recovery of any and all items has been effected:

(a) Promptly arrange for appropriate interment of the remains and make appropriate disposition of artifacts;

(b) Promptly arrange for interment of remains and disposition of artifacts to be consistent with accepted Chickasaw tribal traditions, customs and religion, giving due consideration to the significance of the age, identity, traditions, customs and religion observed by the deceased person if the same can be ascertained.

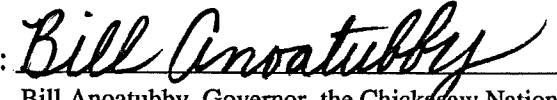
Executed in regular session of the Chickasaw Tribal Legislature at Ada, Oklahoma, on July 15, 1988, by a vote of 13 ayes, 0 nays and 0 abstentions.



Wilson Seawright, Chairperson,
Chickasaw Tribal Legislature



Rena Duncan, Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor, the Chickasaw Nation

Date: **JUL 19 1988**

